

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
TYRIEK BRANCH,

Plaintiff,

-against-

CITY OF NEW YORK; Police Office JACQUELINE  
DEJESUS, Shield# 05516 individually and in his/her official  
capacities; and NYPD Officers JOHN and JANE DOE 1  
through 10, individually and in their official capacities (the  
names John and Jane Doe being fictitious, as the true names  
are presently unknown),

Defendants.  
-----X

**SUMMONS**

Jury Trial Demanded

Plaintiff designates New York  
County as the place of trial.

The basis of venue is:  
CPLR § 504(3)

**To the above named Defendants:**

**You are hereby summoned** to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK  
August 30, 2017

Katherine E. Smith, Esq.  
LAW OFFICE OF K.E. SMITH  
233 Broadway, Ste. 1800  
New York, New York 10279  
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TO:  
ZACHARY W. CARTER  
Corporation Counsel of the City of New York  
Attorney for Defendant THE CITY OF NEW YORK  
100 Church Street  
New York, New York 10007

Police Officer Jacqueline Dejesus Shield# 05516  
79th Precinct, 263 Tompkins Avenue  
Brooklyn, New York 11216

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**VERIFIED COMPLAINT**

**Jury Trial Demanded**

**Index No.**

**BASIS FOR VENUE:**

**CPLR § 504(3)**

PLAINTIFF TYRIEK BRANCH, by his attorney, LAW OFFICE OF KATHERINE E. SMITH, complaining of the defendants, respectfully alleges as follows:

**FACTS**

1. PLAINTIFF TYRIEK BRANCH, is an African American male and has been at all relevant times a resident of Kings County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State

Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. At all times relevant defendants POLICE OFFICER JACQUELINE DEJESUS, Shield No. 05516; and NYPD Defendants John & Jane Doe 1 through 10 ("Doe Defendants") were police officers, detectives or supervisors employed by the NYPD. PLAINTIFF does not know the real names and shield / tax numbers of defendants John & Jane Doe 1 through 10.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

#### **STATEMENT OF FACTS**

8. On or about March 4, 2016 at or around 8:45 PM, PLAINTIFF was lawfully within the vicinity of Putnam Avenue and Irving Avenue, Brooklyn New York.

9. Several unidentified New York City Police Officers, including defendant Police Officer DeJesus, and the DOE defendants, approached PLAINTIFF.

10. Upon information and belief, NYPD raided 512 Classon, Brooklyn, New York (hereinafter, the "Raid Location").

11. Defendant officers falsely claimed PLAINTIFF was in the front section of the Raid Location.

12. PLAINTIFF however was never inside the Raid Location.

13. Notwithstanding the fact that defendants had no probable cause to believe that PLAINTIFF had committed any crimes or offenses, defendants placed PLAINTIFF into handcuffs and under arrest.

14. PLAINTIFF was subsequently transported to the police precinct.

15. PLAINTIFF was interrogated, and was arrested for possession of drugs and weapons, that were allegedly seized from the Raid Location.

16. At the precinct the officers, including defendants falsely informed employees of the Kings County District Attorney's Office ("DA's Office") that they had observed PLAINTIFF commit various crimes/offenses.

17. Defendant officers, nor the DOE defendants observed PLAINTIFF violate any laws / ordinances.

18. The allegations made by Defendants to the DA's Office were false, and the defendants knew them to be false at the time the defendants made the allegations.

19. The defendants then forwarded these false allegations to the DA's Office in order to justify the unlawful arrest of PLAINTIFF and to persuade the DA's Office to commence and/or continue the criminal prosecution of PLAINTIFF.

20. The defendants knew and understood that the DA's Office was relying on the truthfulness of defendants' claims and statements in order to evaluate whether to commence a criminal prosecution against the PLAINTIFF. Defendants were aware that the DA's Office assumed that all of the factual statements, claims and allegations that defendants relayed to the DA's Office were truthful in all material respects.

21. From the precinct, PLAINTIFF was then transported to Central Booking, and was subsequently arraigned, and remanded to Riker's, where he remained for approximately five (5) days.

22. PLAINTIFF appeared in court as required, and on September 30, 2016, PLAINTIFF's criminal case was subsequently dismissed.

23. PLAINTIFF suffered damage as a result of defendants' actions. PLAINTIFF was deprived of liberty, suffered emotional distress, mental anguish, fear, pain, bodily injury, anxiety, embarrassment, humiliation, and reputational damage.

**FIRST CLAIM**  
**UNDER N.Y. STATE and FEDERAL LAW**  
**FALSE ARREST/IMPRISONMENT**

22. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

23. Defendant police officers arrested PLAINTIFF in the absence of probable cause and without a valid warrant.

24. As a result of the aforesaid conduct by defendants, PLAINTIFF was subjected to an illegal, improper and false arrest by the defendants and caused to be falsely imprisoned,

detained and confined. The aforesaid actions by the defendants constituted a deprivation of the plaintiff's rights.

25. As a result of the foregoing false imprisonment, PLAINTIFF's liberty was restricted for an extended period of time, PLAINTIFF was put in fear for PLAINTIFF's safety, was humiliated and subjected to handcuffing and other physical restraints.

26. PLAINTIFF was conscious of said confinement and did not consent to same.

27. The confinement of PLAINTIFF was without probable cause and was not otherwise privileged.

28. As a result of the aforementioned conduct, PLAINTIFF has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

**SECOND CLAIM**  
**UNDER N.Y. STATE LAW AND FEDERAL LAW**  
**MALICIOUS ABUSE OF PROCESS**

29. PLAINTIFF repeats and re-alleges each and every allegation as if fully set forth herein.

30. The individual defendants issued legal process to place PLAINTIFF under arrest.

31. The Municipal Defendants arrested PLAINTIFF in order to obtain collateral objectives outside the legitimate ends of the legal process.

32. The Municipal Defendants acted with intent to do harm to PLAINTIFF without excuse or justification.

33. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained, *inter alia*, loss of liberty, loss of earnings, emotional distress, mental anguish,

shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, in addition to the damages hereinbefore alleged.

**THIRD CLAIM**  
**UNDER N.Y. STATE AND FEDERAL LAW**  
**MALICIOUS PROSECUTION**

55. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

56. By their conduct, as described herein, defendants are liable to PLAINTIFF for having committed malicious prosecution under the laws of the State of New York.

57. Defendants maliciously commenced criminal proceeding against PLAINTIFF. Defendants falsely and without probable cause charged PLAINTIFF with violations of the laws of the State of New York.

58. The commencement and continuation of the criminal proceedings against PLAINTIFF was malicious and without probable cause.

59. All charges were terminated in PLAINTIFF's favor.

60. PLAINTIFF suffered post-arraignment deprivation of freedom: he was remanded to Rikers Island where he remained for approximately five (5) days and he was required to attend many court appearances to defense against the criminal charges.

61. Defendants, their officers, agents, servants and employees were responsible for the malicious prosecution of PLAINTIFF. Defendant City of New York, as an employer of the individual defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.



62. As a direct and proximate result of the misconduct and abuse of authority stated above, PLAINTIFF sustained the damages alleged herein.

**FOURTH CLAIM**  
**UNDER FEDERAL LAW**  
**DEPRIVATION OF FEDERAL RIGHTS**

62. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

63. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

64. All of the aforementioned acts deprived PLAINTIFF of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

65. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

66. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

67. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**FIFTH CLAIM**  
**UNDER FEDERAL LAW**  
**DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL**

68. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

69. Defendants created false evidence against PLAINTIFF.

70. Defendants forwarded false evidence and false information to prosecutors in the Kings County District Attorney office.

71. Defendants misled the prosecutors by creating false evidence against PLAINTIFF and thereafter providing false testimony throughout the criminal proceedings.

72. In creating false evidence against PLAINTIFF, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated PLAINTIFF's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

73. As a result of the foregoing, PLAINTIFF's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**SIXTH CLAIM**  
**UNDER NEW YORK STATE AND FEDERAL LAW**  
**UNLAWFUL STOP, SEARCH, AND SEIZURE**

74. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

75. As a result of the aforesaid conduct by defendants, PLAINTIFF's person and possessions were illegally and improperly seized and searched without consent, a valid warrant,

probable cause, privilege or consent, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

**SEVENTH CLAIM**  
**UNDER N.Y. STATE AND FEDERAL LAW**  
**MUNICIPAL LIABILITY**

86. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

87. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

88. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- iii. fabricating evidence in connection with their prosecution in order to cover up police misconduct; and,
- iv. fabricating evidence in connection with search warrants in order to effectuate otherwise illegal searches and seizures, and,
- v. fabricating evidence in connection with search warrants in order to cover up police misconduct.

89. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the PLAINTIFF.

90. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the PLAINTIFF as alleged herein.

91. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the PLAINTIFF as alleged herein.

92. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the PLAINTIFF's constitutional rights.

93. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the PLAINTIFF's constitutional rights.

94. The acts complained of deprived the PLAINTIFF of his right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon him; and
- D. To receive equal protection under the law.

**WHEREFORE**, PLAINTIFF respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

DATED: New York, New York  
August 30, 2017

\_\_\_\_\_/s\_\_\_\_\_  
Katherine E. Smith  
233 Broadway, Ste. 1800  
New York, New York 10279  
Tel/ Fax: 347-470-3707  
ksmith@legalsmithny.com  
*Attorney for Plaintiff*

**ATTORNEY'S VERIFICATION**

**KATHERINE E. SMITH**, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That he is a member of THE LAW OFFICE OF KATHERINE E. SMITH the attorneys for PLAINTIFF TYRIEK BRANCH in the within entitled action.

That your deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof, and that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the PLAINTIFF is that the PLAINTIFF is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York  
August 30, 2017

\_\_\_\_\_/S/\_\_\_\_\_  
**Katherine E. Smith**